

Guardianship Tentative Rulings
March 10, 2025
8:30 a.m.
Department 42

NOTICE TO ALL GUARDIANS AND PETITIONERS: Phone appearances are highly recommended. Additionally, the Court's Self Help Center is available by phone and email to assist Guardians and Petitioners. The Self Help Center does not provide assistance with Guardianships of the Estate. Please see the Court's website for updated information and contact information for the Court's Self Help Center.

Appearances will be by telephone through WebEx unless otherwise specifically ordered by the court. To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 between 8:20 – 8:30 a.m.

The access code is 1464798527

There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

1. please mute your telephone until your case is called;
2. please do not place the call on hold;
3. minimize all background noise during your call;
4. please identify yourself, each time, prior to speaking with the court;
5. disconnect when the court has completed your case or cases;
6. the court prohibits the recording of these proceedings.

GUARDIANSHIP OF HARMONEY CALDWELL & ADANAE RAMERIZE

Case Number: 25PG-0032803

This matter is on calendar for hearing on a Petition for Appointment of Guardian of the Person of minors, Harmony Caldwell and Adanae Ramerize. The Petition was filed by the minor's maternal grandmother, Rachel Heckler. Letters of Temporary Guardianship issued on February 6, 2025. The Temporary Guardianship's powers are set to expire today unless further extended.

The mother has been personally served; however, service is defective. The proof of service filed February 28, 2025 fails to identify if mother was specifically served with a copy of the Petition and Notice of Hearing and is incomplete as to item 5. There is no proof of service of the Notice of Hearing for the father of Harmony, the father of Adanae, Harmony's paternal grandparents, Adanae's paternal grandparents, or the siblings Izaiah and Anthony. The Court will dispense with notice to the deceased maternal grandfather. Insufficient information has been provided to permit the Court to dispense with notice to these parties. The parents must be personally served in order to move forward on the Petition. Prob. Code § 1511(b). All other parties may be served by mail. Prob. Code § 1511(c). Siblings can be served by mail. Prob. Code § 1511(c). For siblings under 12 years of age, service can be on the parent or guardian with whom the sibling resides. Prob. Code § 1460.1. If any of the above parties consent to the guardianship, Judicial Council form GC-211 may be signed and filed as an alternative to service.

Further, the Petition contains the following defects:

1. As to Harmony: the ICWA-010(A) attached to the Petition filed February 5, 2025, is incomplete. Petitioner must complete an Amended ICWA-010(A) with information regarding her inquiry into whether Harmony may be an Indian Child.
2. As to Adanae: the ICWA-010(A) attached to the Petition filed February 5, 2025, is incomplete. Petitioner must complete an Amended ICWA-010(A) with information regarding her inquiry into whether Harmony may be an Indian Child.
3. Item 13 on the Confidential Guardian Screening Form (GC-212) must be marked. An Amended GC-121 must be filed to cure the defect.
4. Petitioner resides in Oregon; therefore Ms. Heckler must file and serve a Petition to Fix Residence Outside The State of California (GC-085) and Notice of Hearing in order for the children to be moved to Oregon.

The Court has reviewed the Court Investigator's report, filed March 4, 2025, which recommends granting the Petition. The Court will inquire whether the child is or may be an Indian child. If Petitioner has reason to know that the child is an Indian child, they must make further inquiry to learn about the child's Indian heritage. No objections have been filed.

This matter is continued to **Monday, April 28, 2025 at 8:30 a.m. in Department 42** for further proceedings on the Petition. The Temporary Guardianship is ORDERED to remain in effect until the continued hearing date. Petitioner is ORDERED to file the required documents above to correct the defects in the Petition. Petitioner is also ORDERED to serve a new Notice of Hearing, along with a copy of the Amended Petition, for the continued hearing date on all parties identified

above. In the alternative, if Petitioner cannot serve the parties identified above, the Court will require a declaration explaining why they cannot be served and the efforts of Petitioner to locate and serve the parties identified, in order to permit the Court to dispense with notice to the parties. Petitioner is encouraged to seek legal advice from an attorney or reach out to the Court's Family Law Facilitator and Self-Help Center for assistance. **Warning: Failure to properly effect service or provide adequate basis to dispense with service as to the necessary parties will result in denial of the Petition. Notice is preserved. No appearance is necessary on today's calendar.**

GUARDIANSHIP OF KAYLYNN CECIL

Case Number: 23PG-0031881

This matter is on calendar for Annual Review. The annual Confidential Guardianship Status Report has not been submitted. The report was mailed to the Guardian on November 25, 2025 and has not been returned. **The Guardian is ORDERED to appear at today's hearing and submit the Annual Status Report at the time of the hearing. Failure to do so may result in the issuance of an Order to Show Cause why Monetary Sanctions in the amount of \$250.00 should not be ordered for violating the Court's order to appear and to file the report.**

GUARDIANSHIP OF RYDER DORMAN

Case Number: CVPG16-0028713

This matter is on calendar for hearing on a Successor Petition for Appointment of Guardian of the Person of minor, Ryder Dorman. The Petition was filed by the minor's cousin, Joshua Dorman. Letters of Temporary Guardianship issued on February 11, 2025. The Temporary Guardianship's powers are set to expire today unless further extended.

An invalid proof of service was filed on March 5, 2025. The proof of service was undated and items 2, 3 and 4 were left blank. There is no valid proof of service of the Notice of Hearing for the guardian, mother, maternal grandparents, or siblings Shaylynn, Mason, and Ethan. The Court will dispense with notice to the deceased father and paternal grandparents. Insufficient information has been provided to permit the Court to dispense with notice to all other parties. The mother must be personally served in order to move forward on the Petition. Prob. Code § 1511(b). All other parties may be served by mail. Prob. Code § 1511(c). Siblings can be served by mail. Prob. Code § 1511(c). For siblings under 12 years of age, service can be on the parent or guardian with whom the sibling resides. Prob. Code § 1460.1.

The Court has reviewed the Court Investigator's report, February 25, 2025, which recommends granting the Petition. The Court notes that form ICWA-010(A) indicates that the child may be an Indian Child. Petitioner is ORDERED to complete and file Judicial Council form ICWA-030.

This matter is continued to **Monday, April 28, 2025, at 8:30 a.m. in Department 42** for further proceedings on the Petition. The Temporary Guardianship is ORDERED to remain in effect until the continued hearing date. Petitioner is ordered to file and serve a new Notice of Hearing, along with a copy of the Petition, for the continued hearing date on the parties identified above. In the alternative, if Petitioner cannot serve the parties identified above, the Court will require a

declaration explaining why they cannot be served and the efforts of Petitioner to locate and serve the parties identified, in order to permit the Court to dispense with notice to the parties. If any of the above parties consent to the guardianship, Judicial Council form GC-211 may be signed and filed as an alternative to service. **Warning: Failure to properly effect service or provide adequate basis to dispense with service as to the necessary parties will result in denial of the Petition. Notice is preserved. No appearance is necessary on today's calendar.**

GUARDIANSHIP OF LILLIAN & LANA GARCIA

Case Number: 24PG-0032760

This matter is on calendar for further proceedings on a Petition for Appointment of Guardian of the Person of minors, Lillian and Lana Garcia. The Petition was filed by non-relative Alyssa Gibbs. There is no temporary guardianship in place.

There is no proof of service on the mother or father. The mother and father must be personally served at least fifteen days prior to the continued hearing date. Attachment 10 did not provide sufficient detail to dispense with notice to the mother as requested. If the father is incarcerated, Petitioner may be able to effect personal service by contacting the Shasta County Jail. Both minors will need to be personally served or consent and waive notice (Judicial Council Form GC-21, Item 4). The maternal grandfather and siblings were timely served for a previous hearing. The Court was not provided sufficient information in Attachment 10 to dispense with notice to the maternal grandmother as requested. There is no proof of service for the paternal grandmother. The Court will dispense with notice to the paternal grandfather based on the information provided in Attachment 10. In summary, the mother, father, and minors need to be personally served. The maternal grandmother and paternal grandmother need to be served and may be served by mail. Objections have been filed by the father and maternal grandfather.

The Court has reviewed the Children's Services' report dated February 25, 2025, which recommends the Court deny the Petition. The report provides that the minors are back with the father and things are going well. The Court will inquire whether the child is or may be an Indian child. If Petitioner has reason to know that the child is an Indian child, they must make further inquiry to learn about the child's Indian heritage. **An appearance is necessary on today's calendar by the Petitioner to inform the Court whether she intends on proceeding with the Petition. A failure to appear will result in the denial of the Petition and the closure of the file.**

GUARDIANSHIP OF ABIGAIL, BRANDON & MAMIE HAMM

Case Number: CVPG19-0030256

This matter is on calendar for an Order to Show Cause Re: Sanctions issued to the Guardians, Richard and Tonya Allen for their failure to appear at the previous hearing on January 13, 2025 and for their failure to provide the Court with the missing report cards. The matter is also on calendar for further proceedings on the Annual Review regarding status of Petition to Transfer Venue and missing report cards. No response to the Order to Show Cause has been submitted. No Petition to Transfer Venue has been filed. No report cards have been provided. **An appearance**

is necessary on today's calendar to discuss the Guardianship's status. The Guardians may appear by telephone. Warning: Failure to appear on today's calendar will result in the issuance of both monetary sanctions in the sum of \$250.00, and an Order to Show Cause re: Termination of Guardianship.

GUARDIANSHIP OF ARIANNA & JESSIE JOSEPH

Case Number: 25PG-0032771

This matter is on calendar for further proceedings on a Petition for Appointment of Guardian of the Person of minors Arriana and Jessie Joseph and for confirmation of counsel. The Petition was filed by the minors' half-brother Tyler Carmichael. Letters of Temporary Guardianship issued on January 10, 2025. The Temporary Guardianship's powers are set to expire today unless further extended.

The mother, father, Arriana, maternal grandmother, and sibling Jennifer were timely served for the prior hearing. The Court previously dispensed with notice to the deceased maternal grandfather. The paternal grandparents have been timely served by mail for today's hearing. Sibling Timothy has now consented to the appointment and waived notice. The matter has been properly noticed. The father has filed an objection. At the prior hearing on February 10, 2025 the Court appointed the Public Defender to represent the minors.

The Court has reviewed the Court Investigator's report, filed February 3, 2025, which recommends granting the Petition. The Court will inquire whether the child is or may be an Indian child. If Petitioner has reason to know that the child is an Indian child, they must make further inquiry to learn about the child's Indian heritage. **An appearance is necessary on today's calendar to confirm counsel and to set this matter for a contested hearing.**

GUARDIANSHIP OF TRISTA LENTINI

Case Number: CVPG19-0029992

This matter is on calendar for an Order to Show Cause Re: Termination issued to the Guardian, Kathleen Hawkins Smith, for her failure to appear at the previous hearings on October 28, 2024 and January 6, 2025, and for her failure to file the required Confidential Guardianship Status Report. The matter is also on calendar for further proceedings on the Annual Review. No response to the Order to Show Cause has been submitted. No Confidential Guardianship Status Report has been submitted. **An appearance is necessary on today's calendar to discuss the status of the Guardianship. The Guardians may appear by telephone. Warning: Failure to appear on today's calendar will result in the termination of the Guardianship and referral of this matter to Children's Services.**

GUARDIANSHIP OF AVERY & ZADEN MADRIGAL

Case Number: CVPG20-0030814

This matter is on calendar for Annual Review. The annual Confidential Guardianship Status Reports for Avery and Zaden have not been submitted. **The Guardian is ORDERED to appear at today's hearing and submit the Annual Status Report at the time of the hearing. Failure to do so may result in the issuance of an Order to Show Cause why Monetary Sanctions in the amount of \$250.00 should not be ordered for violating the Court's order to appear and to file the report.**

GUARDIANSHIP OF CYILIEGH, JOEY & KENZLIEGH MCCLOUD

Case Number: 24PG-0032725

This matter is on calendar for hearing on further proceedings on a Petition for Appointment of Guardian of Minors, Kenzleigh, Cyiliegh, and Joey McCloud. The Petition was filed by the minor's maternal aunt Lovetta Hemphill and her spouse Austin Hemphill. Letters of Temporary Guardianship issued on December 2, 2024. The Temporary Guardianship's powers are set to expire today unless further extended. The matter is also on calendar for a hearing on a Petition for Appointment of Guardian of Minors filed by paternal aunt Maria McCloud. Letters of Temporary Guardianship were denied pending hearing.

McCloud Petition. At the hearing on February 10, 2025, Ms. McCloud was informed of several defects in her paperwork and was directed to file an Amended Confidential Screening Form, form ICWA-030, and to file and serve the Notice of Hearing and Petition on all required parties. Ms. McCloud has failed to comply with curing any defects in her paperwork as previously noted. There is no proof of service of the Notice of Hearing on the father, temporary guardians, paternal grandparents, or siblings. Insufficient information has been provided to permit the Court to dispense with notice to these parties. The parents must be personally served in order to move forward on the Petition. Prob. Code § 1511(b). All other parties may be served by mail. Prob. Code § 1511(c). There has been no objection filed. If Ms. McCloud intends to move forward with her Petition, she is required to file an ICWA-030 and Amended Confidential Guardianship Screening form.

Hemphill Petition. Petitioners have failed to complete, file, and serve a new Notice of Hearing for today's date. The Court notes the Proof of Unsuccessful Service filed February 24, 2025 showing law enforcement's efforts to serve the father, Joseph McCloud. There is no proof of service of the Notice of Hearing for the father, paternal grandparents, or siblings. Insufficient information has been provided to permit the Court to dispense with notice to these parties. The parents must be personally served in order to move forward on the Petition. Prob. Code § 1511(b). All other parties may be served by mail. Prob. Code § 1511(c). Maria McCloud has filed an objection.

ICWA. Ms. McCloud previously identified that the minors may be members of "Big Valley Band of Pomo Indians- Lake County" and "Quartz Valley Reservation-Siskiyou County," however she failed to file form ICW-030, so the tribe has not been notified. The Hemphill's filed ICWA-030

identified the minors as members of “Quartz Valley Indian Reservation” and notice was provided. Lovetta and Austin Hempfill are ORDERED to complete an Amended ICWA-030 adding the “Big Valley Band of Pomo Indians- Lake County,” to ensure notice is provided to all potentially interested tribes.

This matter is continued to **Monday, April 28, 2025 at 8:30 a.m. in Department 42** for further proceedings on the Petition filed by Lovetta and Austin Hempfill and the Petition filed by Maria McCloud. The Temporary Guardianship is ORDERED to remain in effect until the continued hearing date. All Petitioners are ORDERED to file and serve a new Notice of Hearing, along with a copy of the Petition, for the continued hearing date on the parties identified above. In the alternative, if Petitioners cannot serve the parties identified above, the Court will require a declaration explaining why they cannot be served and the efforts of Petitioners to locate and serve the parties identified, in order to permit the Court to dispense with notice to the parties. **Warning: Failure to properly effect service or provide adequate basis to dispense with service as to the necessary parties will result in denial of the Petition. Notice is preserved. No appearance is necessary on today’s calendar.**

GUARDIANSHIP OF MARYELLA MCCOID

Case Number: CVPG15-0028416

The matter is on calendar for further proceedings regarding an Order to Show Cause re: Sanctions, Status of Filing of Accounting for the Period of November 18, 2015 through November 19, 2023, and Order to Show Cause re: Termination of Guardianship. The Guardians have failed to file an Accounting for the requisite time period. No Status Report has been filed. No response to the Order to Show Cause re: Sanctions and Termination of Guardianship have been filed. **An appearance is necessary on today’s calendar to discuss the status of the Accounting. Warning: Failure to appear on today’s calendar will result in the imposition of sanctions, termination of guardianship, and a referral of this matter to law enforcement and Children Services for investigation.**

GUARDIANSHIP OF MARYELLA MCCOID

Case Number: CVPG15-0028458

This matter is on calendar for further proceedings on an Order to Show Cause re: Termination of Guardianship, Annual Status Review, and Status of Receipt of Confidential Status Report. At the previous hearing on January 13, 2025, the Guardian appeared and provided an explanation for her failure to file the Confidential Guardianship Status Report. The report has still not been submitted. **The Guardian is ORDERED to appear at today’s hearing and submit the Annual Status Report at the time of the hearing. Warning: Failure to appear on today’s calendar will result termination of guardianship and a referral of this matter to law enforcement and Children Services for investigation.**

GUARDIANSHIP OF LUNA MONTGOMERY

Case Number: CVPG12-0027294

This matter is on calendar for further proceedings on Annual Review regarding Status of Grades and Counseling. At the prior hearing on January 6, 2025, the Court ordered the Guardian to submit a Status Report one week before today's hearing. No Status Report has been filed as ordered by the Court. A copy of the minor's grades has been provided. **An appearance is necessary on today's calendar to discuss the minor's grades and counseling.**

GUARDIANSHIP OF CAMDEN RENIER

Case Number: 25PG-0032793

This matter is on calendar for hearing on a Petition for Appointment of Guardian of the Person of minor, Camden Renier. The Petition was filed by the minor's maternal grandparents, Stephen and Julie Renier. Letters of Temporary Guardianship issued on January 31, 2025. The Temporary Guardianship's powers are set to expire today unless further extended.

The mother has been personally served. The Petition provides that the father's last name is unknown; however, documentation filed by the mother provides his name as Jarrod Moore. With the additional information, the Petitioners may be able to serve the father and paternal grandparents. The father must be personally served in order to move forward on the Petition. Prob. Code § 1511(b). The paternal grandparents may be served by mail. Prob. Code § 1511(c). The Indian Child Inquiry Attachment shows that the minor may be an Indian Child. Petitioner will need to file a Notice of Child Custody Proceedings for Indian Child (Judicial Council Form ICWA-030) so that the Court can start the ICWA notification process. The Court has reviewed the Court Investigator's report, filed February 26, 2025, which recommends granting the Petition. The Court will inquire whether the child is or may be an Indian child. If Petitioner has reason to know that the child is an Indian child, they must make further inquiry to learn about the child's Indian heritage. The mother has filed an objection to the Petition. The Court appoints the Public Defender as counsel for the minor.

This matter is continued to **Monday, April 21, 2025, at 8:30 a.m. in Department 42** for further proceedings on the Petition and confirmation of counsel. The Temporary Guardianship is ORDERED to remain in effect until the continued hearing date. Petitioner is ordered to file and serve a new Notice of Hearing, along with a copy of the Petition, for the continued hearing date on the parties identified above. In the alternative, if Petitioner cannot serve the parties identified above, the Court will require a declaration explaining why they cannot be served and the efforts of Petitioner to locate and serve the parties identified, in order to permit the Court to dispense with notice to the parties. **Warning: Failure to properly effect service or provide adequate basis to dispense with service as to the necessary parties will result in denial of the Petition. Notice is preserved.**

The matter is also on calendar for hearing on a Petition for Visitation filed by the mother, Rachel Renier. The matter has not been properly noticed. The Notice of Hearing was not served on any parties. Notice is required to the temporary Guardians. This matter is continued to **Monday, April**

21, 2025, at 8:30 a.m. in Department 42 for further proceedings on the Petition for Visitation. Petitioner shall file and timely serve a new Notice of Hearing for the continued hearing date. **Warning: Failure to properly effect service or provide adequate basis to dispense with service as to the necessary parties will result in denial of the Petition. No appearance is necessary on today's calendar.**

GUARDIANSHIP OF SOPHIA SHELTON

Case Number: 25PG-0032770

This matter is on calendar for further proceedings on the Petition for Appointment of Guardian of the Person of minor Sophia Shelton. The Petition was filed by the minor's maternal aunt Brooklyn Armstrong and non-relative Jimmy Blankenship. Letters of Temporary Guardianship have not issued.

The father and maternal grandfather were timely served for the prior hearing date. The Court previously dispensed with notice to the deceased mother and deceased maternal grandmother. The Court previously deemed sibling Isabella to have been served. The Court still requires service on both parental grandparents to proceed. The grandparents may be served by mail.

The Court has reviewed the Court Investigator's report filed February 3, 2025 which recommends the Petition be denied as to Brooklyn Armstrong. The Children's Services report filed March 4, 2025 recommends the Court grant Guardianship to non-relative Petitioner Jimmy Blankenship.

Petitioner filed an ICWA-010 but was unable to determine if the minor is an Indian Child due to the mother's death and the father not providing this information to Petitioners. The Court will inquire whether the child is or may be an Indian child. If Petitioner has reason to know that the child is an Indian child, they must make further inquiry to learn about the child's Indian heritage.

This matter is continued to **Monday, April 14, 2025, at 8:30 a.m. in Department 42** for further proceedings on the Petition. Petitioner is ordered to file and serve a new Notice of Hearing, along with a copy of the Petition, for the continued hearing date on paternal grandparents. In the alternative, if Petitioner cannot serve the parties identified above, the Court will require a declaration explaining why they cannot be served and the efforts of Petitioner to locate and serve the parties identified, in order to permit the Court to dispense with notice to the parties. **Warning: Failure to properly effect service or provide adequate basis to dispense with service as to the necessary parties will result in denial of the Petition. Notice is preserved. No appearance is necessary on today's calendar.**

GUARDIANSHIP OF TRIXIE STONER-SPADER

Case Number: CVPG11-0026741

This matter is on calendar for an Order to Show Cause Re: Sanctions issued to the Guardians, Richard and Tonya Allen for their failure to appear at the previous hearing on January 13, 2025 and for their failure to provide the Court with the missing report cards. The matter is also on calendar for further proceedings on the Annual Review regarding status of Petition to Transfer

Venue and missing report cards. No response to the Order to Show Cause has been submitted. No Petition to Transfer Venue has been filed. No report cards have been provided. **An appearance is necessary on today's calendar to discuss the Guardianship's status. The Guardians may appear by telephone. Warning: Failure to appear on today's calendar will result in the issuance of both monetary sanctions in the sum of \$250.00, and an Order to Show Cause re: Termination of Guardianship.**

GUARDIANSHIP OF JAIDYN & JAXON STEVENS

Case Number: 25PG-0032805

This matter is on calendar for hearing on a Petition for Appointment of Guardian of the Person of minors, Jaidyn and Jaxon Stevens. The Petition was filed by the minors' paternal grandparents, Royce and Patricia Stevens. Letters of Temporary Guardianship issued on February 10, 2025. The Temporary Guardianship's powers are set to expire today unless further extended.

The father and minors consent to appointment and waive notice. The Court dispenses with notice to the deceased maternal grandmother. No proof of service has been filed for the mother or maternal grandfather. Insufficient information has been provided to permit the Court to dispense with notice to these parties. The mother must be personally served in order to move forward on the Petition. Prob. Code § 1511(b). The maternal grandfather may be served by mail. Prob. Code § 1511(c). The Court has reviewed the Court Investigator's report, filed February 27, 2025, which recommends granting the Petition. The Court will inquire whether the child is or may be an Indian child. If Petitioner has reason to know that the child is an Indian child, they must make further inquiry to learn about the child's Indian heritage.

This matter is continued to **Monday, April 28, 2025, at 8:30 a.m. in Department 42** for further proceedings on the Petition. The Temporary Guardianship is ORDERED to remain in effect until the continued hearing date. Petitioner is ordered to file and serve a new Notice of Hearing, along with a copy of the Petition, for the continued hearing date on the parties identified above. In the alternative, if Petitioner cannot serve the parties identified above, the Court will require a declaration explaining why they cannot be served and the efforts of Petitioner to locate and serve the parties identified, in order to permit the Court to dispense with notice to the parties. **Warning: Failure to properly effect service or provide adequate basis to dispense with service as to the necessary parties will result in denial of the Petition. Notice is preserved. No appearance is necessary on today's calendar.**

GUARDIANSHIP OF SADIE VIERRA

Case Number: CVPG19-0030051

This matter is on calendar for Annual Review. The annual Confidential Guardianship Status Report has not been submitted. The Court notes that there are multiple other pending petitions that have been filed in this matter which are set for hearing on April 7, 2025. This matter is continued to **Monday, April 7, 2025, at 8:30 a.m. in Department 42** for further proceedings on Annual Review.

GUARDIANSHIP OF BENTLEY WARNER

Case Number: 25PG-0032801

This matter is on calendar for hearing on a Petition for Appointment of Guardian of the Person of minor, Bentley Warner. The Petition was filed by the minor's paternal grandmother and her husband, Beverly and Keith Henry. Letters of Temporary Guardianship issued on February 6, 2025. The Temporary Guardianship's powers are set to expire today unless further extended.

The mother has been personally served. The maternal grandparents have been filed served. The Court dispenses with notice to the deceased paternal grandfather. There is no proof of service of the Notice of Hearing for the father, or siblings. Insufficient information has been provided to permit the Court to dispense with notice to these parties. The father must be personally served in order to move forward on the Petition. Prob. Code § 1511(b). Siblings can be served by mail. Prob. Code § 1511(c). For siblings under 12 years of age, service can be on the parent or guardian with whom the sibling resides. Prob. Code § 1460.1. The Court has reviewed the Court Investigator's report, filed March 4, 2025, which recommends granting the Petition. The Court will inquire whether the child is or may be an Indian child. If Petitioner has reason to know that the child is an Indian child, they must make further inquiry to learn about the child's Indian heritage.

This matter is continued to **Monday, April 14, 2025, at 8:30 a.m. in Department 42** for further proceedings on the Petition. The Temporary Guardianship is ORDERED to remain in effect until the continued hearing date. Petitioner is ordered to file and serve a new Notice of Hearing, along with a copy of the Petition, for the continued hearing date on the parties identified above. In the alternative, if Petitioner cannot serve the parties identified above, the Court will require a declaration explaining why they cannot be served and the efforts of Petitioner to locate and serve the parties identified, in order to permit the Court to dispense with notice to the parties. **Warning: Failure to properly effect service or provide adequate basis to dispense with service as to the necessary parties will result in denial of the Petition. Notice is preserved. No appearance is necessary on today's calendar.**

GUARDIANSHIP OF RHYDER WILDER

Case Number: CVPG21-0030992

This matter is on calendar for further proceedings on status of transfer to Humboldt County. The Court notes that a Petition to Transfer Proceeding to Humboldt County has been filed and set for hearing on March 17, 2025. The Court confirms that date. **No appearance is necessary on today's calendar.**

GUARDIANSHIP OF DIAMOND WILLIAMS

Case Number: CVPG09-0026360

This matter is on calendar for Annual Review. The annual Confidential Guardianship Status Report has been received by the Court but it failed to complete item 5. **An appearance is**

necessary on today's calendar to provide the Court with information about who lives in the home with the minor.

GUARDIANSHIP OF CHEYANNE & ISAIAH WOODRUFF

Case Number: CVPG21-0031108

This matter is on calendar for further proceedings on a Petition for Termination of the Guardianship filed by the mother Nicole Cain. The Petition has not been properly noticed. The Court previously dispensed with notice to the deceased maternal grandparents, deceased paternal grandfather, and deceased paternal grandmother/Guardian. At the prior hearing on January 27, 2025, the Court noted that the Petitioner Nicole Cain was required to serve the father, minor, and the minor's siblings. The matter was continued to today and Ms. Cain was warned that a failure to properly effect service could result in the denial of her Petition. Despite the warning, no new documents have been filed by Ms. Cain and no new Notice of Hearing or proofs of service have been filed. It appears that Ms. Cain has taken no action since the prior hearing date. The Petition for Termination is **DENIED**.

This matter is also on calendar for hearing on a Petition for Appointment of Successor Guardian of the Person of minor, Cheyanne and Isaiah Woodruff. The Petition was filed by the minor's paternal uncle, Cody Murray. Letters of Temporary Guardianship have not been issued.

The minors have consented to the appointment of the proposed Guardian. The Court dispenses with notice to the deceased maternal grandparents and deceased paternal grandparents. There is no proof of service of the Notice of Hearing for the father, mother or siblings. Insufficient information has been provided to permit the Court to dispense with notice to these parties. The parents must be personally served in order to move forward on the Petition. Prob. Code § 1511(b). Siblings can be served by mail. Prob. Code § 1511(c). For siblings under 12 years of age, service can be on the parent or guardian with whom the sibling resides. Prob. Code § 1460.1. The Indian Child Inquiry Attachment shows that the minors are Indian Children. Petitioner will need to file a Notice of Child Custody Proceedings for Indian Child (Judicial Council Form ICWA-030) so that the Court can start the ICWA notification process. The Court also notes that the Confidential Guardianship Screening Form omitted Attachment 5. An Amended Screening Form is required. The Court has reviewed the Court Investigator's report, filed February 26, 2025, which recommends granting the Petition.

This matter is continued to **Monday, April 21, 2025, at 8:30 a.m. in Department 42** for further proceedings on the Petition. Petitioner is ordered to file and serve a new Notice of Hearing, along with a copy of the Petition, for the continued hearing date on the parties identified above. In the alternative, if Petitioner cannot serve the parties identified above, the Court will require a declaration explaining why they cannot be served and the efforts of Petitioner to locate and serve the parties identified, in order to permit the Court to dispense with notice to the parties. Petitioner shall also file the Notice of Child Custody Proceedings (Judicial Council Form ICWA-030) promptly to ensure timely noted and shall file an Amended Guardianship Screening Form. **Warning: Failure to properly effect service or provide adequate basis to dispense with service as to the necessary parties will result in denial of the Petition. Notice is preserved. No appearance is necessary on today's calendar.**

GUARDIANSHIP OF CLOUD XIONG

Case Number: 24PG-0032610

This matter is on calendar for further proceedings on the Petition for Appointment of Guardian of the Person of minor, Cloud Xiong. The Petition was filed by non-relative Juanita Roman. Letters of Temporary Guardianship issued on November 1, 2024. The Temporary Guardianship's powers are set to expire today unless further extended.

The father, paternal grandparents and siblings Harmon and Sky were timely served for the prior hearing date. The Court previously dispensed with notice to the unknown maternal grandparents. At the prior hearing on January 27, 2025, the Court informed Petitioner that personal service on the mother and minor were required to proceed on the Petition. No new documentation has been filed since the prior hearing date. The Court requires service on the mother and minor to grant the Petition. The mother and minor must be personally served. In the alternative to personally serving the minor and the mother, if Petitioner is able to obtain a Consent and Waiver of Notice (Judicial Council form GC-211, Item 4.) signed by the mother or the minor, that would satisfy the service requirement.

The Court has reviewed the Children's Services report, filed October 7, 2024, which recommends granting the Petition. The Court will inquire whether the child is or may be an Indian child. If Petitioner has reason to know that the child is an Indian child, they must make further inquiry to learn about the child's Indian heritage.

This matter is continued to **Monday, April 28, 2025 at 8:30 a.m. in Department 42** for further proceedings on the Petition. The Temporary Guardianship is ORDERED to remain in effect until the continued hearing date. Petitioner is ordered to file and serve a new Notice of Hearing, along with a copy of the Petition, for the continued hearing date on the parties identified above. In the alternative, if Petitioner cannot serve the parties identified above, the Court will require a declaration explaining why they cannot be served and the efforts of Petitioner to locate and serve the parties identified, in order to permit the Court to dispense with notice to the parties. **Warning: Failure to properly effect service or provide adequate basis to dispense with service as to the necessary parties will result in denial of the Petition. Notice is preserved. No appearance is necessary on today's calendar.**

GUARDIANSHIP OF JOSIAH & DESHAWN YOUNG

Case Number: 22PG-0031745

This matter is on calendar for Annual Review. The annual Confidential Guardianship Status Reports have not been submitted. **The Guardian is ORDERED to appear at today's hearing and submit the Annual Status Report at the time of the hearing. Failure to do so may result in the issuance of an Order to Show Cause why Monetary Sanctions in the amount of \$250.00 should not be ordered for violating the Court's order to appear and to file the report.**